

**PRAWAS NEPALI SAMPARKA BIBHAG
AUSTRALIA
INCORPORATED**

An association incorporated in New South Wales under the *Associations
Incorporations Act 2009*.

Incorporated:

Registration number:

CONSTITUTION

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BYLAWS of Prawas Nepali Samparka Bibhag Australia

Article 1: Introduction

Prawas Nepali Samparka Bibhag Australia shall be an inclusive, independent, non-profit and non-political organization. It will be an open membership organization comprising all Nepalese living in Australia.

Article 2: NAME

The name of the organization shall be **Prawas Nepali Samparka Bibhag Australia** and shall hereafter be referred to as PNSBA.

Article 3: DEFINITIONS

In this bylaw, unless otherwise specified,

- 3.1 **Convention or General Meeting** means General Body Meeting which will be held every two years. This can be called biennial general meeting or convention (BGM).
 - 3.2 **Exe Com** means the Executive Committee of PNSBA.
 - 3.3 **Nepalese** means persons who have been connected to Nepal by birth, by family relation, by marriage, language and religion.
 - 3.4 **PNSBA** means Prawas Nepali Samparka Bibhag, Australia
 - 3.5 **Organization** means Prawas Nepali Samparka Bibhag, Australia
 - 3.6 **CEC** means central executive committee.
 - 3.7 **NEC** means National Election Commission of an organization.
 - 3.8 **State Executive Committee** means state committee.
 - 3.9 **Special general meeting (SGM)** means a general meeting of PNSBA other than the general meeting held every two years, called for a discussion on a specific/urgent issues or proposal.
 - 3.10 **State Committee** means State Committees of PNSBA established in each state of Australia under this bylaw.
 - 3.11 **Members** means members of Prawas Nepali Samparka Bibhag
 - 3.12 Australia meeting definition of as described in Article 7 of this bylaws
- The bylaws** mean the bylaws of PNSBA

The Fund means Funds of PNSBA

4. Objectives

The objectives of PNSBA are to:

- 4.1** Create unity, harmony and cooperation among PNSBA in Australia.
- 4.2** Promote legitimate interests of Nepalese in Australia and help them realize their full potential individually and as a member of the Nepalese community.
- 4.3** Work closely with other Nepali and non-Nepali community organizations and Australian governments to promote Nepali culture and identity within multicultural Australia.
- 4.4** Contribute to the overall development of Nepal by utilizing talents, knowledge and resources of Nepalese community living in Australia; and
- 4.5** To support Australian people, Australian Government, Nepal Government and Nepali people during emergencies like flooding, landslides, earthquakes, and other humanitarian activities.
- 4.6** Foster social connection by facilitating social, sporting, and recreational opportunities that promote integration and inclusion with the broader mainstream community.
- 4.7** offer life skills development programs through educational projects on subjects such as and not restricted to health and wellness, swimming, water safety, driver education, legal rights, and environmental awareness
- 4.8** resource its activities by procurement of support from sources such as, but not limited to government grants, corporate sponsorships, donations, philanthropy, fund raising events and volunteer help

5. Scope

Prawas Nepali Samparka Bibhag Australia shall operate in all states and territories of Australia. There shall be one Central Executive Committee (CEC) (of 11 members) and one State Executive Committee (SEC) (of 11 members) in each of the States and Territories of Australia. CEC will comprise at least one member from each state &

Territory. Members of states and Territory will be elected by general member of respective states and Territory. Office bearer (President, Vice President and Secretary) will be elected by general member of Australia. President will nominate Treasurer from CEC members. This bylaw shall govern the conduct of all the activities of Prawas Nepali Samparka Bibhag Australia.

6. Effective date

This bylaw will be effective upon the approval by the general body of Prawas Nepali Samparka Bibhag Australia.

7. Membership

7.1 Membership types and eligibility:

7.1.1 General Member: All Nepalese origin aged over 18 years old residing in Australia shall become member of PNSBA with the condition that they registered themselves as prescribed by this bylaw. Must pay \$20 to be a member and needs to renew the membership biennially.

7.1.2 Patron: Former coordinator or former Central President or Vice president or general secretary or Treasurer are eligible to become patron of this organization. Patron must pay \$500 onetime fee to become a patron of this organization.

7.1.3 Advisors: Executive members of state and central committee and general members will be eligible to be elected to central committee of **Prawas Nepali Samparka Bibhag Australia** and its state committee. However, general members can be appointed as advisors and any other committees and sub-committees if the executive committee desires so. Past CEC, SEC office bearers, general members of the organization can be appointed as advisor and general members can be appointed in other working committees and sub-committees if the executive committee desires so. Advisors must pay \$250 one time. Besides that, CEC and SEC can appoint an advisor who is not a member of

the organization if 51 percent of committee members desire to do so.

7.2 Rights of members:

7.2.1 General members: General members of PNSBA shall have rights to receive information about activities of PNSBA and shall have rights to attend programs organized by PNSBA and participate in all the projects launched. However, they shall not have rights to vote in the resolution made by AGM or SGM, stand for election of any position and vote for election of the executive committee of PNSBA.

7.3 Limitation of rights of a general member

A general member shall be able to exercise his/her rights of voting and attend all the functions organized by PNSBA except those meant for the election of executive members.

7.4 Conduct of members

7.4.1 All members of PNSBA shall maintain high level of social, financial and personal integrity within PNSBA and within wider community in general

7.4.2 All members of PNSBA shall act in such a way that the reputation of Nepali and is uplifted within Nepali community and within wider community in general

7.4.3 All members of organization shall contribute financially, emotionally and physically from the best of their capacity to the calls made by executive committee

7.4.4 All members shall show generally accepted disciplines in all programs, meeting and discussions organized by PNSBA

7.4.5 All members shall act to maintain unity among PNSBA

7.4.6 No members shall involve in promoting, supporting or encouraging external people or organization aimed at creating disputes, disharmony and problems within PNSBA

7.4.7 No members of PNSBA shall involve in oral or written discussion and media presentation which damage reputation and

integrity of PNSBA and its present and past leaders

7.4.8 All members shall bring forward all the relevant issues, dissatisfaction, expectation and any form of opinion to the executive committee for resolution of the issues.

7.4.9 All members shall follow the decision of the executive committee.

7.4.10 All members shall follow the instruction and direction made by the president or by the most senior executive of PNSBA in absence of president in all programs, meetings and gathering organised by PNSBA.

7.5 Disciplinary action against a member

7.5.1 The Executive committee may take disciplinary action against a member if a member is found to be involved in activities contrary to the letter and spirit outlined in section 7.4 of this law. Disciplinary action may involve cautioning, seeking explanation and / or expelling from membership of the organization

7.5.2 Executive committee shall be able to set a procedure for investigation of the allegation against a member based on the nature and extend of the allegation

7.5.3 Once complaint is received against a member, the executive committee shall inform the accused in writing outlining the allegation and seeking his / her explanation on the allegation in the written notice of decision

7.5.4 If the disciplinary action taken by the executive committee is to expel a member, it must mention the duration of the expulsion and conditions of reinstatement of his / her membership

7.5.5 If the disciplinary action taken by the executive committee is to expel the member, the decision should be made by 51 percent of the executive committee members attending the meeting

7.5.6 Resolution of disputes

7.5.6.1 A dispute between a member and another member (in their capacity as members) of the association, or a dispute between a member or members and the association, are to be referred to a Community Justice Centre for mediation under the Community Justice Centers Act 1983.

7.5.6.2 If a dispute is not resolved by mediation within 3 months of the referral to a Community Justice Centre, the dispute is to be referred to arbitration.

7.5.6.3 The Commercial Arbitration Act 2010 applies to a dispute referred to arbitration

7.6 Cessation of Membership

A member ceases to be a member of the organization if the person:

7.6.1 dies; or

7.6.2 resigns from the membership; or

7.6.3 is expelled from the organisation as per section

7.7 Membership entitlements is not transferable

The rights and obligations of a member are not transferable to any other individual or legal entity.

7.8 Resignation from a membership

A member may resign from the membership of the organisation by first giving the Secretary a written notice outlining reasons and effective date of resignation and in such a case the member ceases to be a member.

8 Central Executive Committee (CEC)

8.1 The Central Committee shall consist of a maximum of 11 members consisting of representatives from all states as outlined below. It is formed with a tenure of 2 years period.

1. President

2. Vice President

3. General Secretary

- 4. Treasurer
- 5. Public Officer
- 6. Executive Members (6)

8.2 Functions of the Central Executive Committee (CEC)

The National Exe Com is the main body of the organisation. The major functions of the National Exe Com shall be as follows:

- 8.2.1** To prepare the policy and the program of the organisation and submit to the BGM
- 8.2.2** To plan and implement projects in accordance with the objective of the organisation
- 8.2.3** To constitute committees and sub-committees to perform specific tasks as needed
- 8.2.4** To review activities of the organisation and adopt appropriate actions plan
- 8.2.5** To review the operation and management of the fund
- 8.2.6** To establish an excellent working relationship and contact with other community organizations for the interest of the organisation
- 8.2.7** To establish work procedures of the organisation, committees and sub-committees
- 8.2.8** To provide guidance and supervision to the state chapters.
- 8.2.9** To perform any other tasks that may be deemed necessary to achieve the objectives of the organisation.

8.3 Duties of Office bearers

8.3.1 President

The President shall function as the Chief Executive Officer (CEO) of the organisation and preside on all meetings of the organisation. He/she shall maintain contact with external parties (national and international authorities, institutions and individuals) to achieve the objectives of the organisation, advise

Secretary to hold Exe Com meetings, keep oversight of the functions of other office bearers and members, appoint committees in agreement with the Exe Com members to accomplish specific tasks and perform all the duties to achieve objectives of the organisation

8.3.2 Vice-Presidents

The Vice Presidents' (VPs) main responsibility shall be to support the President in discharging his/her responsibilities. Senior most VP will preside over the meeting of the organisation in the President's absence. Further, VP will perform any other tasks as delegated by the President. In addition, each state Co-Ordinator will be responsible to lead either their geographical territory or specific assigned work, like membership, fund raising, project development, etc.

8.3.3 General Secretary

The General Secretary shall keep the records of all official documents of the organisation including the list and contact address of all members and shall perform such other duties as may be assigned to him/her by the Executive Committee or by the President. The Secretary shall be responsible to call the Exe Com and all other meetings in consultation with the President, consolidate agenda for the meetings, maintain minutes of the meetings and advise all office bearers of the minutes.

8.3.4 Treasurer

The Treasurer shall manage the assets of the organisation. He/she shall receive donations, contributions from members and external parties. He/she shall be custodian of the funds of the organisation and shall invest and/or disburse them subject to the rules and procedures decided by the Exe Com. Central Committee will open a bank account of PNSBA.

8.3.5 Public Officer

- a) The Central Committee shall appoint one of its elected members as Public Officer of the organization.
- b) Public Officer is responsible for:
 - (i) collecting all documents from former committee members and delivering the documents to the new committee members.
 - (ii) returning all documents related to the organization to authorized new committee members or newly appointed public officer.
 - (iii) acting as the official contact for the organization, including taking delivery of documents served on the organisation and bringing them to the attention of the committee as soon as possible; and
 - (iv) Custody of any documents as required by the bylaws.

To act as a spokesperson of the organization.

- (v) In consultation with the President/Executive Committee, he/she will prepare and make press releases and any announcements of the organization.
- (vi) To act as a spokesperson of the organization.
In consultation with the President/Executive Committee, he/she will prepare and make press releases and any announcements of the organization.

1. State Co-Ordinator	1
2. Deputy state Co-Ordinator	1
3. Secretary	1
4. Treasurer	1
5. Public Officer	1
6. Members (maximum of)	6
Total	11

8.3.6 Executive Members

Executive Members shall participate in National executive committee meetings, participate in decision making of the organisation and perform duties as directed by the central executive committee.

9. State Committees: size, structure and functions

9.1 State Executive Committee: SEC shall consist of a maximum of 5 officers and 6 members as outlined below. It is formed with a tenure of 2 years period. However, elected Central committee members from each state and territory will be in SEC team by default.

9.2 Functions and duties of State Committees:

9.2.1 State Coordinator: He/she will be responsible for leading the state chapter and function as the leader of the state committee. He/she will preside over all the SEC meetings. To act as a vice President of National Executive Committee to execute any programs and projects in consultation with the State Committee.

9.2.2 Deputy state coordinator: The deputy state coordinator's main responsibility shall be to support the state coordinator in discharging his/her responsibilities. The Deputy state coordinator will preside over the meeting of the state committee in the state coordinator's absence. Further, he/she will perform any other tasks as delegated by the state coordinator. In addition, he/she will be responsible to lead either their geographical territory or specific assigned work, like membership, fund raising, project development, etc.

9.2.3 Secretary: The Secretary shall keep the records of all official documents of the State Chapter including the list and contact address of all members and shall perform such other duties as may be assigned to him/her by the State Committee or by the Coordinator/President. The Secretary shall be responsible to call the State Com and all other meetings in consultation with the Coordinator/President, consolidate agenda for the meetings, maintain minutes of the meetings and advise all office bearers of the minutes.

9.2.4 Treasurer: The treasurer shall manage the assets of the State Chapter. He/she shall receive donations, contributions from members and external parties. He/she shall be custodian of the funds of the organisation and shall invest and/or disburse them subject to the rules and procedures decided by the Exe Com. If State Chapter opts to have their own bank account, it will be opened with joint signature of Coordinator/President and Treasurer.

9.2.5 State Committee Members: State Committee Members shall participate in all State committee meetings, participate in decision making of the State Chapter and perform duties as directed by the State Chapter Committee.

10. Meetings

10.1 General Meetings of the PNSBA will be conducted biennially (every 2 years) in a time and place determined by the National Executive Committee. The Biennial General Meeting (BGM) shall be the supreme body of the organization.

10.1.1 All members of the organisation (as stated under 7.1) residing in the Australia will be eligible to attend the general meeting of the PNSBA.

10.1.2 In the case of state chapters (SEC), they can choose to hold their Annual General Meeting or can make it also biennial together with the National committee (BGM).

10.1.3 The meeting shall review progress and advise on the core activities for the coming two years. The meeting may also provide feedback to the CEC on all aspects of programs and policies adopted by the CEC that are of interest or have implications for the State.

10.1.4 The biennial general meeting shall also approve the financial statement of the CEC.

10.1.5 The biennial general meeting shall be chaired by its president whereas Annual General Meeting of SEC shall be chaired by the coordinator of the SEC or by an official delegate.

10.1.6 The BGM also approves the audited consolidated financial reports of the NC including financial reports of the SECs.

10.1.7 The BGM or convention will also hold an election of the Central Executive Committee for which an Election Commission will be formed at least two months prior to the convention.

10.1.8 To amend the bylaws, if required.

10.2 Special General Meeting

10.2.1 The President must call Special General Meeting (SGM) within 30 days of the recommendation or request if:

10.2.2 Exe Com decides to recommend the president for SGM to resolve important issues for which it is not in the best interest of the organisation to wait until regular general meeting; or

10.2.3 Requested in writing by minimum 20 percent of registered members specifying the reason/s to hold such a meeting; or

10.2.4 The special general meeting shall be chaired by the president. In the absence of the president, a vice president nominated by the president shall chair the meeting. If such a nomination has not been issued by the date of SGM, then a senior most vice president shall chair the meeting.

10.2.5 All members can participate in the Special General Meeting of the organisation. However, only registered members according to article 7.2, 7.3, 7.4 can vote.

10.2.6 Special General Meeting can discuss and make decisions only on the issues decided in the meeting of Exe Com or in the application requesting the call of Special General Meeting.

10.2.7 The president shall decide whether an online or face-to-face SGM shall take place depending on the issue/s raised and recommendation of Executive committee.

11. Quorums and Decisions

11.1 Quorums

11.1.1 In all meetings of NECs and the SEC, online or physical presence of at least 51 percent of the executive committee is required to transact the normal business.

11.1.2 In BGM of PNSBA, physical presence of minimum of 20 percent of registered members is required.

11.1.3 The Quorum of the Special General Meeting will be also 20 percent of registered voters.

11.2 Voting and Prohibition of Proxies

11.2.1 Regarding any question arising at all meetings of the organisation, a single membership has one vote only and a family membership has a maximum of votes equal to the maximum number of individuals over 18 years of age in the family.

- 11.2.2** All votes shall be given personally. Voting by proxy at all meetings and conventions is prohibited.
- 11.2.3** In the case of an equality of votes on a question at a meeting, the person presiding is entitled to cast the deciding vote.
- 11.2.4** A member is not entitled to vote at any meetings of the organisation unless all money due and payable by the member to the organisation has been paid.

12. The Funds of the Organisation

12.1 Source of fund

Activities of the organisation, in both state and the national level, shall be financed from the funds received by both levels, SEC and CEC, from following sources:

- 12.1.1** Patron, associate and supporters' fees.
- 12.1.2** Donation: program operated from the programs/projects run by the organisation;
- 12.1.3** Any voluntary contributions received from members; and
- 12.1.4** Governments and non-profit organizations grant

12.2 Management of the Funds

12.2.1 Any amount received by the organisation at all levels shall be deposited in the bank designated by the Executive Committee. As much as practicable, all the transactions shall be carried out through a bank. The Treasurer and the President of the NC and the respective Treasure and the Coordinator of the SEC or any other office bearer designated for this purpose by the President or State Coordinator shall jointly sign for the operation of the respective bank accounts.

12.2.2 Treasurers of each State Committee shall maintain appropriate records of all funds received, expenditures incurred and balance in coordination with CEC Treasurer. The respective Treasurer shall furnish the statement of income and expenditure to the executive committee and the BGM of PNSBA in the respective state.

12.2.3 The Treasurer of the Executive Committee shall maintain appropriate records of all funds.

12.2.4 received, expenditures incurred and balance at national level. He/she shall furnish the consolidated statement of income and expenditure to the CEC and BGM of PNSBA.

12.2.4 The NC and the SECs shall direct or approve the expenditure from the fund in accordance with this statute and in the best interest of the PNSBA. The SECs and CEC may delegate their authority of fund management to an individual of the executive committee or to a committee formed under this bylaw by developing adequate guidelines.

12.2.5 Expenditure from the fund shall be approved with the joint signature of at least two members of the Executive Committee (President/ Coordinator or designate and Treasurer).

12.2.6 The officers of the organisation shall comply with the accounting and audit requirements of the law of Australia where the organisation has its registration relevant to the income/expenditure level of the organisation, regarding:

- a. the keeping of accounting records of the organisation.
- b. the preparation of Annual Financial Statements of the organisation.
- c. the auditing or independent examination of the financial statement of the organisation; and
- d. the preparation of the annual report.

13. Auditor

13.1 Central Executive Committee decides, appoints and fixes remuneration (if needed) for a qualified auditor as per Australian Auditing Standard.

13.2 Prior to the Biennial General Meeting the auditor will examine, verify and certify the overall accounts of the committees with the relevant reporting to be presented in general meetings.

14. Advisors

14.1 The CEC may from time to time decide to appoint people of high standing or those with a long and/or outstanding record of contribution to the development of Nepalese community, or any other person deemed deserving by the Executive Committee as advisors of the PNSBA. However, the number of advisors may not exceed 10 at any one time. Advisors shall be invited to attend Executive Committee meetings, express their opinion, offer advice but shall have no voting right. Past Office Bearer of CEC are eligible to be appointed as an Advisor

14.2 The SEC may from time to time decide to appoint people of high standing or those with a long and/or outstanding record of contribution to the development of Nepalese Community or any other person deemed deserving by the State committee as advisers of the SEC. However, the number of advisors may not exceed 5 at any one time. Advisors shall be

invited to attend SEC meetings, express their opinion, offer advice but shall have no voting right. Past Office Bearer of SEC are eligible to be appointed as an Advisor

15.National Election Commission (NEC)

15.1 The CEC shall set a date for the Election of the office bearers of the NC and form a National Election Commission (NEC) consisting of three members, two months prior to the date of election. One of the three members shall be appointed as the Chair of National Election Commissioner. To be eligible for election commissioner, Person must be either Former Coordinator or Former president of central committee or Former vice president or general secretary. However, the commission may appoint more registered members to assist it in conducting a free and fair election process. This same election commission will conduct the election of state chapter also.

15.2 Members of the National Election Commission shall not be eligible to be candidates for the CEC or SEC.

15.3 The Election Commission shall decide its own procedure to hold the elections including manner of voting, i.e. in person, online or by mail.

15.4 Election of committee members

15.4.1 Nominations of candidates for election as office-bearers of the association or as ordinary committee members of Center Executive and State Executive Committee:

- 15.4.1.1 must be made in writing, signed by 2 members of the organization and accompanied by the written consent of the candidate (which may be endorsed on the form of the nomination), and
- 15.4.1.2 must be delivered to the National Election commissioner at least 7 days before the date fixed for the holding of

- the annual general meeting at which the election is to take place
- 15.4.1.3 Nomination fee for President \$200, Vice president \$190, Secretary 180 & Treasurer \$170 and members \$120 applies.
 - 15.4.1.4 If insufficient nominations are received to fill all vacancies on the committee, the candidates nominated are taken to be elected and further nominations are to be received at the annual general meeting.
 - 15.4.1.5 If insufficient further nominations are received, any vacant positions remaining on the committee are taken to be casual vacancies.
 - 15.4.1.6 If the number of nominations received is equal to the number of vacancies to be filled, the persons nominated are taken to be elected.
 - 15.4.1.7 If the number of nominations received exceeds the number of vacancies to be filled, a ballot is to be held either physically or use of Technology
 - 15.4.1.8 The ballot for the election of office-bearers and ordinary committee members of the committee is to be conducted 48 hours before the annual general meeting in any usual and proper manner that the committee directs.
 - 15.4.1.9 A person nominated as a candidate for election as an office-bearer or as an ordinary committee member of the association must be a member of the association.
 - 15.4.1.10 A person nominated as a candidate for election as an office-bearer (Vice President, Secretary & treasurer) must have been served in previous CEC or

SEC committee as a committee member

15.4.1.11 A person nominated as a candidate for election as a President for CEC must have been served in previous CEC or in SEC committee as an office bearer position

15.4.1.12 A person nominated as a candidate for election as a President for SEC must have been served in previous SEC committee as an office bearer position

15.4.1.13 A person who has served Three terms already in any position in CEC & SEC is not eligible to be a candidate for any position in CEC and SEC.

16. Interpretation of the Bylaws

16.1 Executive Committee may appoint 3 members bylaws committee from within PNSBA members when it requires to interpret the bylaws

16.2 The right to interpret this bylaw shall rest on the 3-member Bylaws Committee formed as per section 16.1. Chairperson of the Committee shall be elected from among the three members.

16.3 The Executive Committee should make a formal request in writing to the chairperson of the Bylaws Committee seeking advice on specific bylaws. Bylaws Committee must provide opinion in writing to Executive Committee through the president within shortest possible time but not exceeding two weeks of the request.

16.4 In case of any unforeseen issues that may arise and /or in case of conflicting provisions in this bylaw, Executive Committee may request opinion from Bylaws Committee in writing; the Bylaws Committee shall formulate rules and procedures to resolve

the issues based on the spirit & objective of the bylaws. Unforeseen issues are those which have not been mentioned or provisioned in the existing bylaws.

16.5 The opinion of the Bylaws Committee shall be final & should be implemented by the Exe Com.

16.6 New rules formulated by the Bylaws Committee as per 16.0 shall be a part of the bylaws until the next biannual general meeting of the organization.

16.7 New Rules formulated by the Bylaws Committee as per 16.0 must be presented before the forthcoming BGM for decision and if not approved shall be void and null. However, action taken based on the new rules shall be officially valid.

16.8 Interpretation of the Bylaws Should be in accordance with New South Wales Associations Incorporations Act 2009

17. Alterations

Any of these rules may be rescinded or amended by the resolution passed at BGM of the organization by two thirds of the Registered Members present and voting.

18. Dissolution

The organization may be dissolved or disbanded by a resolution passed at any Biennial General Meeting or Special General Meeting of the organization by a two-thirds majority of the registered Members present and voting. However, such a resolution will not become effective until officially dissolved with the Secretary of State where it is registered.

19. Annual Meeting

At least one meeting must be conducted between the Central Committee and all the state committees at least one time each year.

20. LOGO

The organization has its own logo with the wording

“Prawas Nepali Samparka Bibhag Australia Estd 2024”.

21. Jurisdiction

In the event of a dispute or any proceedings, the jurisdiction and laws of the state where it is registered shall apply.